

21STCV47235 21STCV47235

County: los-angeles

Division: Civil Law and Motion

Department: 513

Hearing date: 2026-07-21

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Case Number: 21STCV47235 Hearing Date: July 21, 2026 Dept: 513

Superior

Court of California

County

of Los Angeles – Central District

Department 513

Nelly Alejandra Correa

Flores

, et al.;

Plaintiffs,

vs.

American Honda Motor Co., Inc.

;

Defendants.

Case No.:

21STCV47235

Hearing Date:

July 21, 2026

Time:

10:00 a.m.

[Tentative] Order RE:

MOTION

TO TAX COSTS

MOVING PARTY: Plaintiffs Nelly Alejandra Correa
Flores and Elvia Flores Pena

RESPONDING

PARTY: American Honda Motor Co., Inc.

Motion to Tax

Costs

The court considered the moving,
opposition, and reply papers filed in connection with this motion.

DISCUSSION

Plaintiffs Nelly

Alejandra Correa Flores and Elvia Flores Pena ("Plaintiffs") move the court for
an order striking or taxing defendant American Honda Motor Co., Inc.'s
("Defendant") Memorandum of Costs.

"A 'verified
memorandum of costs is prima facie evidence of the propriety' of the items
listed on it, and the burden is on the party challenging these costs
to demonstrate that they were not reasonable or necessary." (Adams
v. Ford Motor Co. (2011) 199 Cal.App.4th 1475, 1486 [internal citation
omitted].)

The Court finds
that Plaintiffs have not met their burden to show that the costs claimed by

Defendant are not reasonable or necessary. (Adams, supra, 199 Cal.App.4th at p. 1486.) Plaintiffs have not shown that (1) the claimed filing fees were not reasonably incurred or necessary; (2) the claimed deposition costs were excessive; (3) the service of process costs were not reasonably incurred or necessary, and (4) the various “other” costs identified in the memorandum, including arbitration costs, private investigator expenses, and Carfax reports were not reasonably necessary in a Song-Beverly action decided by arbitration. (November 3, 2025 Memorandum of Costs, MC-010 pp.1 [signed by counsel for Defendant under penalty of perjury], Worksheet pp.1, 2, 4].)

ORDER

The court denies
plaintiffs Nelly Alejandra Correa Flores and Elvia Flores Pena’s motion to
strike or tax fees and costs.

The court orders defendant
American Honda Motor Co., Inc. to give notice of this ruling.

IT IS SO ORDERED.

DATED: July 21, 2026

Robert B. Broadbelt III

Judge of the Superior Court